

The Assam Economic and Statistical Service Rules, 1973

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[The Assam Economic and Statistical Service Rules, 1973](#)

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[\(Assam Rules 8 of 1973\)](#)

[Notification No. PWR 82/67/387, dated the 7th August, 1973. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Assam is pleased to make the following rules regulating recruitment and the conditions of service of persons appointed to the Assam Economic and Statistical Service:](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[These Rules may be called "The Assam Economic and Statistical Service Rules, 1973".](#)

(2)

They shall take effect from the date of publication in the official Gazette.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context-

(i)

"Commission" means the Assam Public Service Commission.

(ii)

"Governor" means the Governor of Assam.

(iii)

"Government" means the Government of Assam.

(iv)

"Member" means a member of the Assam Economic and Statistical Service appointed to the Service either before or after the commencement of these Rules.

(v)

"Prescribed subjects" means Economics or Statistics or Mathematics.

(vi)

"Service" means the Assam Economic and Statistical Service.

(vii)

"Year" means the calendar year.

3.

Constitution of the Service and status.

(1)

The service shall consist of the following categories of posts and such other posts as may be included in the service by Governor from time to time:

Category I-Director of Economics and Statistics;

Category II-Additional Director of Economics and Statistics;

Category III-Joint Director of Economics and Statistics;

Category IV-Senior Research Officer/Deputy Director of Economics and Statistics;

Category V-Research Officer/Programmer;

Category VI-Statistical Officer/Assistant Programmer/Sub-Divisional Statistical Officer;

Category VII-Inspector of Statistics.

(2)

Each of the categories mentioned in sub-rule (1) shall form an independent cadre. A member of any category shall have to claim for appointment to a post in higher category except in accordance with the provisions of these Rules.

(3)

The members belonging to categories I, II, III, IV and V shall belong to Class I Government Service and members of Category VI and VII shall belong to Class II Government Service.

4.

Strength of cadre.

(1)

The number of posts, permanent as well as temporary, under each of the categories of the service shall be such as may be determined by the Governor from time to time.

(2)

The strength of the service shall, on the commencement of these Rules, be as shown in Schedule I:

Provided that the Governor may hold in abeyance any post or posts as and when considered necessary.

5.

Recruitment.

(1)

Director of Economics and Statistics-Category I: Appointment shall be made by direct recruitment through the Commission.

(2)

Additional Director of Economics and Statistics-Category II: Appointment shall be made by promotion from the select list prepared for this purpose from amongst eligible officers of category III who have rendered not less than 5 years of service in category III or a total of not less than 21 years of service in the service on the first day of the year in which the promotion is made.

(3)

Joint Director of Economics and Statistics-Category III: Appointment shall be made by promotion from the select list prepared for this purpose from amongst eligible officers of Category IV who have rendered not less than 5 years of service in Category IV or a total of not less than eighteen years of service in the service on the first day of the year in which the selection for promotion is made.

(4)

Senior Research Officer/Deputy Director of Economics and Statistics-Category IV: Appointment shall be made by promotion from the select list prepared for this purpose from amongst eligible officers of Category V who have rendered not less than 5 years of service in Category V or a total of less than fifteen years of service in the service on the first day of the year in which the selection for promotion is made.

(5)

Research Officer/Programmer-Category V: Appointment shall be made in the following manner:

By promotion from the select list prepared for this purpose from amongst eligible officers of Category VI who have rendered not less than seven years of service in Category VI on the first day of the year in which the selection for promotion is made.

(6)

Statistical Officer/Assistant Programmer-Category VI: Appointment shall be made in the following manner:

by promotion from the select list prepared for this purpose from amongst the eligible officers of Category VII who have rendered not less than seven years of service in Category VII on the first day of the year in which the selection for promotion is made.

Explanation. - To be considered eligible for promotion under this rule, member of the service shall be required to pass the prescribed departmental examination.

(7)

Inspector of Statistics-Category VII. Appointment shall be made in the following manner:

(a)

by promotion against 70% of the vacancies from the select list prepared for this purpose from amongst the Sub-Inspector of Statistics belonging to the Assam Economics and Statistical (junior) Service who have rendered service for a continuous period of seven years as Sub-Inspector and have successfully undergone such training and have passed such departmental examination as may be prescribed by the Government for this purpose;

(b)

by direct recruitment 25%;

(c)

by selection from Upper Division Assistants 5%.

Note. - For the purpose of recruitment to the cadre of Inspector of Statistics-Category VII under Rule 5 (7) (c) the Director of Economics and Statistics shall submit before the Government/Appointing Authority a list of Upper Division Assistants who are graduates in any subject of any University and have completed not less than five years of continuous service as Upper Division Assistant in the Directorate of Economics and Statistics. Assam, along with Annual Confidential Report and other particulars as required. In every case where a junior Upper Division Assistant is selected in preference to a Senior Upper Division Assistant the authority concerned shall record in writing the reasons for such selection.

6.

Notwithstanding anything contained in Rule 5, if in the opinion of the Governor the exigencies of the Service so require, the Governor may, after consultation with the Commission, adopt such method of recruitment to the Service other than those specified in the said sub-rules, as he may, by regulations made in this behalf, prescribe:

Provided that the number of persons, recruited under this rule shall be as determined by the Governor from time to time.

7.

Selection for promotion.

(1)

For the purpose of preparing the select list mentioned in sub-rules (2) to (7) of Rule 5 there shall be a Selection Committee consisting of the following:

Chairman:

(i)

Secretary to the Government of Assam, Planning and Development Department.

Members:

(ii)

A Secretary to the Government of Assam to be nominated by the Chief Secretary, Assam.

(iii)

Director of Economics and Statistics, Assam.

The Governor shall call upon the Committee to select, from amongst the members of the Service who are eligible for promotion under Rule 5, persons considered suitable for promotion to each of the higher posts in order of preference, indicating the number of likely vacancies to be filled up by such promotion and shall forward to the Committee the Character Rolls and other relevant papers of all eligible members of that service equal to 4 times the number of vacancies. The list of officers so selected shall not exceed twice the number of likely vacancies.

The selection list for the different categories of posts shall be prepared separately and in every case where a junior member is selected in preference to his senior/seniors in the cadre, the reasons for such supersession shall be recorded by the Committee in writing.

(2)

The selection lists shall be prepared by the Committee on the basis of merit and suitability in all respects with due regard to seniority.

(3)

(a)

On receipt of selection list, it shall be forwarded by the Government to the Commission together with the relevant documents including the records of those members who are proposed by the Committee to be superseded.

(b)

The commission shall consider the list along with the other documents received from the Government and such other documents as may be called for by the Commission.

(c)

If the Commission considers that it is necessary to make any change in the list received from the Government, it shall inform the Government of the changes proposed and after taking into account the comments, if any, the Government may approve the list with such modification, if any, as may, in its opinion be just and proper.

(d)

The list as approved by the Commission, shall along with all the documents be forwarded to the Government and the list shall form the Select List for the purpose of appointment under Rules 5 (2), 5 (3), 5 (4), 5 (5) (a), 5 (6) and 5(7) (a) as the case may be.

(4)

A Select List shall ordinarily remain valid for a period of one year from the date of issue of the recommendation letter by the Commissioner:

Provided that in the event of any grave lapse in the conduct or performance of duties on the part of any member in the Select List, the Governor may, if he thinks fit, remove such member from the Select List. In removing the name of such a member from the Select List the Commission shall be consulted.

8.

Direct recruitment through the Commission.

(1)

A Combined Competitive Examination for recruitment to the posts under Category VII shall normally be held once in a year or at such intervals as the Government may, in consultation with the Commission, from time to time, determine.

(2)

The examination shall be conducted by the Commission in accordance with such syllabus as the Government may, from

time to time, prescribe in consultation with Commission. The syllabus shall, on the commencement of these Rules, be laid down as in Schedule III.

(3)

In all cases of appointment by direct recruitment as well as by promotion there shall be reservation in case of candidates belonging to a member of the Scheduled Castes, Scheduled Tribes as per the promotion of the Assam Scheduled Castes and Scheduled Tribes (Reservation of Vacancies in Services and Posts) Act, 1978, and Rules framed thereunder. There shall also be reservation for candidates belonging to Other Backward Classes including More Other Backward Classes, as per Government instructions for direct recruitment only.

(4)

If sufficient number of qualified candidates belonging to Scheduled Castes, Scheduled Tribes (Plains) and Scheduled Tribes (Hills) is not available for filling up all the vacancies reserved for them, the remaining vacancies shall be filled up from amongst other candidates and a number of vacancies shall be reserved for the candidates belonging to Scheduled Castes, Scheduled Tribes (Plains) and Scheduled Tribes (Hills) for the next recruitment year in the manner as may be prescribed by the Governor from time to time.

(5)

The Commission shall prepare a list of all candidates who have qualified in the examination in order of merit, which shall be determined in accordance with the aggregate marks obtained by each candidate and if two or more candidates obtained equal marks, the Commission shall arrange them in order of their relative merit which shall be determined in accordance with the general suitability of the candidates for the Service. The list shall be forwarded to the Government and may also be published in the Assam Gazette. The list shall normally remain valid for one year from the date of issue of the recommendation letter.

(6)

The inclusion of a candidate's name in the list shall confer no right to appointment unless the Government is satisfied after such enquiry as may be considered necessary, that the candidate is suitable in all respects for appointment to the Service, and unless there is a vacancy in service for appointment of the candidate.

9.

Age.

- Unless otherwise expressly provided for, a candidate shall not be less than 21 years of age on the first day of the year in which the advertisement is issued by the Commission and shall not exceed the upper age limit as indicated hereinafter; provided that in the case of candidates belonging to special categories there shall be relaxation in accordance with the general orders issued from time to time by the Government.

Note. - Special categories means belonging to Scheduled Castes, Scheduled Tribes and such other persons or class of persons as may be notified as such by Government from time to time.

10.

Qualification for direct recruitment.

(1)

For direct recruitment to the post of Director of Economics and Statistics a candidate should have the following qualifications:

(a)

At least 2nd Class Master's Degree in Statistics, Mathematics, or Economics from a recognised University or its equivalent;

Or

Degree of a recognised University with Mathematics, Statistics, Economics or Commerce as a subject and a Diploma recognised by Government obtained after at least 2 years' Post-graduate Training in Statistics.

Note. - Doctorate or other research degree in Statistics, Mathematics, Economics or Commerce is desirable.

(b)

Not less than 10(ten) years' experience in Statistical work/ Investigation/Research in a Government Department or Commercial concern of repute or in conducting and guiding research in Statistics in a University or Institute of Training and Research as evidenced by published work. Administrative experience for not less than 5 years in a responsible capacity.

(c)

Age. - Notwithstanding anything contained in Rule 9, a candidate shall not be, on the first day of the year in which the advertisement is issued, less than 35 years and more than 45 years of age:

Provided that for candidates belonging to the Service, there shall be no upper age limit.

(2)

For direct recruitment to the post of Inspector of Statistics a candidate should have a minimum academic qualification as follows:

(a)

At least Second Class Master's Degree in Economics, Statistics or Mathematics of a recognised University or its equivalent;

(b)

The candidate should not be more than 36 years of age on the first day of the year in which the advertisement is issued: Provided that the upper age limit in respect of candidates who have been serving in lower post or cadre in the service and in the Assam Economics and Statistical (Junior) Service for a minimum period of five years on the date of application, shall be 40 years on the 1st day of the year in which the advertisement is issued.

11.

Disqualification for appointment.

(1)

No person shall be qualified for appointment to the Service unless he is a citizen of India.

(2)

No person who has more than one wife living shall be eligible for appointment to the Service:

Provided that the Governor may, if he is satisfied that there are special grounds for doing so, exempt any person from the operation of the sub-rule.

(3)

No person who attempts to enlist support for his candidate directly or indirectly by any recommendation either written or oral or by any other means, shall be appointed to the Service.

12.

Appointment.

(1)

All appointments shall be made by the Governor and shall be notified in the official Gazette.

(2)

Subject to the provisions of sub-rules (3) and (6) of Rule 8 all appointments by direct recruitment shall be made in the order in which the names appear in the list forwarded by the Commission.

(3)

Appointments by promotion shall be made in the order in which the names appear in the Select List prepared in accordance with provisions of Rule 7.

13.

Joining time.

- A person shall join within 15 days from the date of receipt of order of appointment, failing which and unless the Governor extends the period which shall not in all exceed three months, the appointment shall be cancelled.

14.

Probation.

(1)

All persons appointed to the different categories of posts in the Service against permanent vacancies shall be on probation for a period of 2 (two) years:

Provided that the period of probation may, for good and sufficient reasons, be extended by the Governor in individual cases by a period/periods not exceeding two years:

Provided further that the Governor may reduce the period of probation to one year for those who have already passed all the Departmental Examinations as prescribed for the Service:

Provided further that the Governor may at his discretion-

(a)

count any period of service in posts carrying equivalent or higher responsibilities;

(b)

count in the case of persons promoted from a lower category, the period of officiating service, if any, towards the said period of two years.

(2)

Every probationer shall, during the period of probation, appear at and pass all the Departmental Examinations prescribed for the Service and conducted by the Commission.

(3)

Where a cadre consists of both permanent and temporary posts, appointment on probation against permanent vacancies in that cadre shall be according to the order of seniority as determined under Rule 17.

(4)

Persons appointed against temporary posts in a cadre may also appear at and pass the Departmental Examinations prescribed for the Service and conducted by the Commission.

15.

Discharge or reversion of a probationer.

- A probationer shall be liable to be discharged from service or reverted to the next lower post or to his previous service in which he holds a lien, as the case may be, if he-

(a)

fails to pass the Departmental Examination unless the Governor permits him to sit for re-examination in the subject or subjects in which he fails, or

(b)

fails to comply with any of the provisions of these Rules, or

(c)

is found ineligible or otherwise unfit for being a member of the Service.

16.

Confirmation.

- Where a probationer has completed his period of probation to the satisfaction of the Governor, he shall be confirmed in his post if he-

(a)

has passed the Departmental Examinations completely; and

(b)

is considered otherwise fit for confirmation by the Governor:

Provided that the Governor may for good and sufficient reasons temporarily exempt a member of the Service from passing any one or more of the prescribed Departmental Examinations and confirm him in his post:

Provided further that the existing members of the Service appointed to the respective cadres before the commencement of these Rules shall not be required to pass Departmental Examinations for the purpose of confirmation in that cadre.

17.

Seniority.

(1)

The seniority of a member of the Service in a cadre shall be determined according to the order of merit in the Select List approved under Rule 7 (3) (d) or the list prepared under Rule 8 (5) if the member joins within 15 days of the order of appointment:

Provided that in case a member of the Service is prevented from joining within the said period of 15 days by circumstances of a public nature or for reasons beyond his control the Government may extend it for a further period of 15 days. If the period is not so extended under Rule 13 his seniority shall be determined in accordance with the date of joining:

Provided further that a member appointed by promotion in a year shall be senior to a member appointed by direct recruitment in the same year.

(2)

If the confirmation of a member of the Service in a cadre is delayed on account of his failure to qualify for such confirmation, he shall lose his position in the order of seniority vis-a-vis such of his juniors as may be confirmed earlier than him. His original position shall, however, be restored on his confirmation subsequently.

18.

Departmental Examination.

- All members appointed, promoted to the Service shall have to pass the Standard Departmental Examinations prescribed for Gazetted Officers of the State in Accounts and language, as conducted by the Commission; and such other Examinations as may be prescribed from time to time.

19.

Gradation List.

- There shall be prepared every year a gradation list consisting of the names of all members of Service arranged in the order of seniority in respect of each cadre and shall be notified in the official Gazette.

20.

Pay.

- The scale of pay admissible to members of different cadres in the Service shall be as shown in Schedule II subject to such revision as may be made by the Governor from time to time.

21.

Fixation of initial pay in the time scale.

(1)

On first appointment to the Service, the initial pay of a member of the Service shall be fixed at the minimum of the time scale unless under the Assam Fundamental Rules and Assam Subsidiary Rules or under any rules governing the fixation of pay for the time being in force, he is entitled to have his pay fixed at a higher stage in that time-scale.

(2)

On appointment of a member of the Service on promotion, his initial pay shall be fixed in accordance with the principles governing such fixation in the Assam Fundamental Rules and Assam Subsidiary Rules or in any other rules for the time being in force.

22.

Increments.

(1)

The first increment of a member of the Service appointed on probation shall accrue on the expiry of one year; but further increments shall be admissible only on his confirmation.

(2)

A member of the Service on confirmation, shall draw pay at the rate corresponding to his position in the time-scale but he shall not be entitled to any arrear pay on account of withholding of due increments for the period prior to the date of his confirmation.

(3)

The Governor may withhold, for such time as he may direct, an increment or increments due to a substantive member of the Service in a cadre who has failed to pass the Departmental Examination and/or has not successfully undergone the prescribed training within such time as the Governor may, by general or special order, prescribe but the withholding of such increment shall have no cumulative effect.

(4)

A member of the Service appointed against a temporary post/vacancy in a cadre shall be eligible to draw his usual increments in the time-scale under the provisions of the Assam Fundamental Rules subject to the condition that as and when placed on probation his increments shall be regulated by the provisions of sub-rule (1) of this rule.

23.

Efficiency Bar.

- A member of the Service shall be allowed to cross the first or subsequent Efficiency Bar in the time-scale of pay if the Governor is satisfied about his ability and integrity.

24.

Miscellaneous.

- Except as provided in these Rules all matters relating to pay, allowances, leave, pension, discipline and other conditions of Service shall be regulated by the general rules framed under Article 309 of the Constitution, or in force under Article 313 of the Constitution.

25.

Relaxation.

- Where the Governor is satisfied that the operation of any of these Rules causes undue hardship in any particular case, he may order to dispense with or relax the requirement of that rule to such extent and subject to such conditions as he may consider necessary for dealing with the case in a just and equitable manner:

Provided that the case of any person shall not be dealt with in any manner less favourable to him than that provided by any of these Rules.

26.

Interpretation.

- If any question arises relating to the interpretation of these Rules, it shall be referred to the Government in the Planning and Development Department whose decision thereon shall be final.

27.

Validation of past actions.

- Except as provided in these Rules all orders made or action taken prior to the commencement of these Rules in respect of matters relating to the conditions of service of the members shall be deemed to have been validly made or taken under the corresponding provisions of these Rules.

I

[Ref. Rule 4 (2)]

Strength of Post

Cadre

Designation

Permanent

Temporary

Total

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

CATEGORY

1.

Director of Economics and Statistics

1

-

1

2.

Additional Director of Economics and Statistics

1

1

3.

Joint Director of Economics and Statistics

4

3

7

4.

Senior Research Officer

5

5

29

Deputy Director of Economics and Statistics

14	
5	
5.	
Research Officer Programmer	
14	
12	
17	
6.	
Statistical Officer/ Asstt. Programmer/ Sub-Divisional	
Statistical Officer	
26	
234	
-	
7.	
Inspector of Statistics	
85	
25	
110	
Total	
149	
69	
218	
II	
[Ref. Rule 20]	
Scale of Pay	
Designation	
Scale of Pay	
1.	
Director of Economics and Statistics	
Rs. 3825-125-4450-50-5200-175-5900	
2.	
Addl. Director of Economics and Statistics	
Rs. 3375-100-3575-125-4325-EB-125-4450-150-5200	
3.	
Joint Director of Economics and Statistics	
Rs. 3275-100-3575-125-4200-EB-125-4450-150-5050	
4.	
Senior Research Officer/Deputy Director of Economics and	
Statistics	
RS. 2975-100-3575-125-3825-EB-125-4450-150-4750	
5.	
Research Officer/ Programmer	
Rs. 2275-60-2395-80-2875-EB-100-3575-125-4450	
6.	
Statistical Officer/ Asstt. Programmer/ Sub-Divisional	
Statistical Officer	
Rs. 1785-50-2035-60-2395-80-2475-EB-80-2875-100-3575-125-4200	
7.	
Inspector of Statistics	
Rs. 1475-40-1635-50-2035-EB-60-2395-80-2875-100-3575-125-3825	
III	

[Ref. Rule 8]

Syllabus for Combined Competitive Examination

Paper for the Combined Competitive Examination for recruitment to the posts under the service shall consist of-

Papers

Standard

Marks

Time

1. English (Essay, Comprehension precis and drafting)

B.A. standard

100

3 Hrs.

2. General knowledge

Degree standard

100

3 Hrs.

3. One paper in Economics or Mathematics or Statistics

do

100

3 Hrs.

4. Viva-voce

100

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